

I 01778

Book

TOMASHA VILLAGE RESURVEY DECLARATION OF RESTRICTIONS

Lots 195 thru 256,
inclusive, and
Lots 269 thru 276,
inclusive.

Dated
Filed
No.

I 6P1035

Page

A re-plat of lots 195 thru 254 & lots 269 thru 276, Tomasha Village

Whereas, Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, Len H. Sutherland and Kether Lee Sutherland, husband and wife, the owners of the following described real property, to-wit:

All of Lots 195 to 256, inclusive, and 269 to 276, inclusive, Tomasha Village, a subdivision of land in the City of Independence, Jackson County, Missouri,

For the purpose of securing orderly and uniform improvements of said property, and to the objective that the undersigned, its successors, assigns and future Grantees may be protected and assured that the above described lands shall be used for high class residential purposes, we the undersigned hereby declare that the above described lands are held and shall be conveyed subject to the reservations and covenants hereinafter set forth.

SECTION I USE OF LAND

(A) Lots 195 to 256, inclusive and 269 to 276 inclusive, for one family dwellings

- (1) The above lands, may be improved, used or occupied for private residence, and no flat or apartment house though intended for residential purposes may be erected thereon.
- (2) All improvements designed for occupancy by a single family shall not be more than two stories, except that split-level construction shall be permitted.
- (3) No dwelling or residence shall be located nearer to the front lot lines or side lot lines than as indicated on the plat.
- (4) No trailer, basement, tent, shack, garage, barn or other outbuildings, shall at any time be used as a residence, storage or tool shed, temporarily or permanently, nor shall any residence of temporary character be permitted. No clothes line of a permanent type shall be erected on any lot. No type of trash burner shall be erected and trash burning will not be permitted on any lot.
- (5) No structure shall be moved on said premises from another location, and no dwelling or residence shall be occupied until fully completed, and such dwelling or residence must be fully completed within six months after the first earth excavation is started. All yards, front and side, must be either sodded or sprigged within the above time.
- (6) No animals, livestock, or poultry of any kind shall be raised, bred, or kept on any lot, except that dogs, cats, or other household pets may be kept, provided that not more than (2) dogs or two (2) cats or two (2) other household pets shall be kept on any residence lot.
- (7) No school buses, tractors, trucks, boats, or trailers or campers shall be parked or stored in the open on the lot or at the curb for more than (4) four hours at any one time.

(8) No noxious or offensive trade or activity shall be carried on upon any lot, nor shall anything be done thereon which may be or become annoyance or nuisance to the neighborhood.

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SECTION II APPROVAL OF PLANS AND SPECIFICATIONS
OF IMPROVEMENTS PERMITTED.

(9) All plans and specifications for the construction of dwelling or residence shall be submitted to Harry F. Gordanier or Thomas H. Shaw or Lon M. Sutherland for their approval so long as either of them shall own any lot in this subdivision.

(10) No fencing shall be permitted on any lot unless the same is yard fencing and approval for all fencing must be obtained in the manner and method as set out in Paragraph 9, but no fencing to extend nearer to front street than the rear line of dwelling or, to the side than the side line of property or to the side line of dwelling on a corner lot of that particular residence except decorative railing along walkways which must be submitted for approval along with plans and specifications.

(11) All plans, specifications and location for the construction of a swimming pool must be submitted as set forth in Paragraph 9.

(12) All improvements shall be connected with the sanitary sewer system, which is now or shall be, constructed to serve the above premises. No other sanitary provision, septic tank or other device for sewage disposal shall be installed or permitted to remain on any lot.

(13) No residence of one story shall be erected having a ground floor area of less than 1600 square feet, which shall be exclusive of porches, garages and breezeways. No split level residence shall be erected having a living area of less than 1600 square feet on the two main levels. No residence of two stories, or one and one-half stories, shall be erected having less than 1200 square feet on the ground level. No residence having the appearance from the front of a two story residence, including the foundation, with the principal living area on the second floor, shall have less than 1600 square feet on the second floor or principal living area. Any dwelling with basement garage must have 1700 square feet on main living area. No residence shall have less than two (2) garages, which may be attached or built-in garages. All driveways shall be poured concrete or asphalt, and shall extend to the curb line of the street upon which the premises front, or to the property line of the side street. All roofing shall be wood shingle, any other material due to pitch of roof must be submitted for approval as set out in Paragraph 9.

(14) The developers may maintain a small real estate office, from which to sell lots and homes in the development, until all lots have been sold.

(15) No sale of said lots shall be consummated without giving at least fifteen (15) days' written notice to PROPRIETORS and the owners of the two lots adjoining said lot on the sides, of the terms thereof; and any of them shall have the right to buy said lot on such terms within fifteen (15) days, by giving notice to the sellers of their intentions, providing they complete the purchase with the fifteen (15) days after title papers have been made available and on the same terms as provided for the proposed sale of said lots. Such notice shall be personally served if service can be made on the subdivision; if any person entitled to service cannot be found on the subdivision, notice shall be mailed to such person at his last known address. Affidavit

of the person making service shall be sufficient evidence thereof to protect a purchaser. State laws govern paragraph fifteen. No notice shall be required to be given PROPRIETORS as herein provided after the PROPRIETORS have sold the last lot owned by them in the subdivision, but such notice shall only be given to the adjoining lot owners.

SECTION III SIGNS, BILLBOARDS AND
MISCELLANEOUS PROVISIONS

(16) The construction or placing of signs, billboards or advertising structures of any kind is prohibited, except that one sign advertising the rental or sale of property is permitted, provided it does not exceed five (5) square feet in size, and further that the developers may maintain a large sign or signs pertaining to said development prior to completion.

(17) No tanks for the storage of oil or other fluids or out buildings of any kind may be maintained on any portion of the premises above the surface of the ground.

(18) No trash, ashes or other refuse shall be thrown or dumped upon any undeveloped portions of said lands.

SECTION IV DURATION AND ENFORCEMENT

(19) These restrictions and covenants are to run with the land and shall be binding on all parties and all persons claiming under them until January 1, 1988, at which time said covenants shall be automatically extended for successive periods of ten (10) years unless the then owners of a majority of the lots in the said subdivision shall, before the expiration of said original term, or any extension thereof, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds, change or modify the same in whole or in part.

(20) Each of the restrictions and covenants herein set forth shall run with the land and bind the present owner, its successors and assigns and all parties claiming by, through or under them shall be taken to hold, agree and covenant with the owner of said tract, to conform to and observe said restrictions and covenants. The owner or owners of any portion of the above lands shall have the right to sue for and obtain an injunction, prohibitive or mandatory, to prevent the breach of or to enforce the observance of the restrictions and covenants above set forth, in addition to the ordinary legal action for damages; and the failure of the owners of said premises hereby restricted to enforce any of the restrictions and covenants herein set forth shall not waive such right to do so at any time thereafter.

(21) Invalidity of any one or more of the provisions, reservations, restrictions and covenants herein contained, and any amendments hereto, by court order or judgment, shall in no wise affect any of the other provisions, reservations, restrictions and covenants herein.

(22) Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, Lon M. Sutherland and Esther Lee Sutherland, husband and wife, reserve the right to permit the erection of a residence on any of the lots in said addition two feet nearer to any street line on which said lot fronts, by executing and recording a proper instrument of writing, changing the front building set back line.

(23) No member of the building committee, nor any of the signers of this instrument, either individually or jointly, shall be subject to any action for damages nor liable for damages by refusal to act or not to act on by acting, and all land owners by taking title do hereby release and discharge each such member or person from all liability.

I 6P1038

IN WITNESS WHEREOF, the parties hereto have executed this instrument
this 15th day of October, 1967.

Harry F. Gordanier
HARRY F. GORDANIER

Willa H. Gordanier
WILLA H. GORDANIER

Thomas H. Shaw
THOMAS H. SHAW

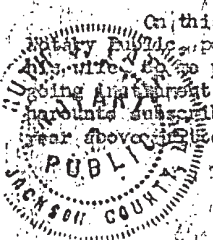
Helen L. Shaw
HELEN L. SHAW

Lon M. Sutherland
LON M. SUTHERLAND

Esther Lee Sutherland
ESTHER LEE SUTHERLAND

STATE OF MISSOURI)
)SS
COUNTY OF JACKSON)

On this 15th day of October, 1967, before me, the undersigned, a
Notary Public, personally appeared Harry F. Gordanier and Willa H. Gordanier,
his wife, to me personally known, and acknowledged that they executed the fore-
going instrument as their free act and deed. In testimony whereof, I have
hereunto subscribed my name and affixed the seal of my office on the day and
year above written.



Ruth J. Pate
Notary Public

My Commission expires My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)
COUNTY OF JACKSON)SS

I 6P1039

On this 26th day of October, 1967, before me, the undersigned a Notary Public, personally appeared Thomas H. Shaw and Helen L. Shaw, his wife, to me known to be the persons described in and who executed the foregoing instrument, and acknowledged that they executed the same as their free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal of my office in Raytown, Missouri, the day and year last above written.



Ruth J. Pato
NOTARY PUBLIC, within and for said
County and State

My Commission expires

My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)
COUNTY OF JACKSON)SS

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Lon H. Sutherland and Esther Lee Sutherland, his wife, to me known to be the persons described in and who executed the foregoing instrument and acknowledged that they executed the same as their free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at my office in Raytown, Missouri, the day and year last above written.



Ruth J. Pato
Notary Public, within and for said County
and State

My Commission expires

My Commission Expires Sept. 29, 1971

I 6P1010

LAND TITLE

I 01778

STATE OF MISSOURI } ss.
JACKSON COUNTY }
RECEIVED FOR RECORD

NOV 3 AM 10 26 '5

BILL W. AUSTIN
Recorder

I 6P1035

LAND TITLE

850

STATE OF MISSOURI } ss. IN RECORDER'S OFFICE
COUNTY OF JACKSON }

I, BILL W. AUSTIN, Recorder of Deeds within and for the County aforesaid, do hereby
certify that the foregoing instrument of writing was on the 3 day of Nov
A. D. 1947, at 10 o'clock 26.5 minutes AM, duly filed for record in
this office, and with the certificate of acknowledgement thereon endorsed, is recorded in the
records of this office, in Book 76 at page 1035

IN WITNESS WHEREOF, I hereunto set my hand and affix the seal of said office, at
Independence, Missouri the day and year last aforesaid.

BILL W. AUSTIN, Recorder By J. McManamy Deputy

97 - 1 81331

I3117P 240

1914 OCT 29 1967
COUNTY OF JACKSON MO
CERTIFIED INSTRUMENT

1997 DEC 29 11:46

I3117P 240

RECORDED

DIRECTOR OF RECORDS

200
300
500
1100
120.00
Ready

AMENDMENT
TO THE

DECLARATION OF RESTRICTIONS
OF TOMASHA VILLAGE RESURVEY

LOTS 195 THRU 256

LOTS 269 THRU 276

(A REPLAT OF LOTS 195 THRU 254, AND LOTS 269 THRU 276)

This is an Amendment to that certain Declaration of Restrictions of Tomasha Village (herein "Declaration") affecting that certain tract of real estate described as:

All of Lots 195 to 256, inclusive, and 269 to 276, inclusive, TOMASHA VILLAGE RESURVEY, a subdivision of land in the City of Independence, Jackson County, Missouri,

executed by all of the then owners of the aforesaid parcel of real estate under date of October 25, 1967, which Declaration was thereafter recorded November 3, 1967, as Document Number I-01778 in Book I-6 beginning at Page 1035 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence.

WHEREAS, the Declaration in Section IV, paragraph (19), provides with respect to modifying or changing the said Declaration that

"[T]hese restrictions and covenants are to run with the land and shall be binding on all parties and all persons claiming under them until January 1, 1988, at which time said covenants shall be automatically extended for successive periods of ten (10) years unless the then owners of a majority of the lots in the said subdivision shall, before the expiration of said original term, or any extension thereof, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds, change or modify the same in whole or in part"; and

WHEREAS, the undersigned represent the current owners of a majority of the lots in the said subdivision; and

WHEREAS, the undersigned deem it necessary and desirable to change and modify the Declaration in part as hereinafter set forth, and hereby desire that this change and modification to the Declaration be executed, acknowledged, and recorded in the office of the Recorder of Deeds, and further desire that the Declaration, as changed and modified hereby, shall continue to run with the land; and

WHEREAS, the undersigned desire and acknowledge that all terms of the Declaration not hereby changed or modified shall remain binding on the real estate.

NOW THEREFORE, by virtue of the amendment authority aforesaid, the undersigned current owners of a majority of the lots in the said subdivision, herein change and modify the Declaration in the following respects, to-wit:

I

Section I, Use Of Land, Paragraph (7) is hereby changed and modified to read as follows:

(7) No school buses, tractors, commercial trucks (not including personal pickup trucks or vans as defined by the State of Missouri), boats, recreational vehicles, campers, or trailers shall be kept, parked, maintained, or stored in the open on the lot or at the curb for more than twenty-four (24) hours at any one time, it being the intention of this paragraph that the permanent parking and storage of any of the vehicles described herein shall be done either, at a location off-site of the real estate subject to the Declaration, or within the enclosed garages with closed doors which form a part of the residences.

II

Section II, Approval of Plans and Specifications of Improvements Permitted, Paragraph (9) is hereby changed and modified to read as follows:

(9) All plans and specifications for the construction of a dwelling or residence, building, wall, structure, improvement, or addition shall be submitted to the Architectural Review Committee of The Tomasha Homes Association.

III

Section II, Approval of Plans and Specifications of Improvements Permitted, Paragraph (13) is hereby changed and modified to read as follows:

(13) No residence of one story shall be erected having a ground floor area of less than 1600 square feet, which shall be exclusive of porches, garages and breezeways. No split level residence shall be erected having a living area of less than 1600 square feet on the two main levels. No residence of two stories or one and one-half stories, shall be erected having less than 1200 square feet on the ground level. No residence having the appearance from the front, of a two story residence, including the foundation, with the

principal living area on the second floor, shall have less than 1600 square feet on the second floor or principal living area. Any dwelling with basement garage must have 1700 square feet on the main living area. No residence shall have less than two (2) garages, which may be attached or built in garages. All driveways shall be poured concrete, asphalt, brick, cast concrete paving blocks, or coated concrete, and shall be subject to the approval of the Architectural Review Committee of the Tomasha Homes Association, and shall extend to the curb line of the street upon which the premises front, or to the property line of the side street. All roofing shall be wood shingle, genuine slate, natural clay tile, natural concrete tile, or composition weathered gray roof material, and shall be subject to the approval of the Architectural Review Committee of the Tomasha Homes Association.

IV

Section II, Approval of Plans and Specifications of Improvements Permitted, Paragraph (15) is hereby deleted in its entirety.

V

Section II, Approval of Plans and Specifications of Improvements Permitted, the following are inserted and shall become new Paragraphs (15) and (16):

(15) No radio or television transmitting or receiving antenna or dish larger than a cube 2 feet by 2 feet by 2 feet (2' x 2' x 2') may be erected maintained outside of any residence on any lot.

(16) No solar apparatus may be maintained, erected, or kept outside of any residence on any lot.

VI

Section III, Signs, Billboards, and Miscellaneous Provisions, Paragraph (16) as originally numbered in the Declaration, shall be re-numbered as Paragraph (17) and is hereby changed and modified to read as follows:

(17) The construction or placing of signs, billboards or advertising structures of any kind is prohibited, except that one sign advertising the rental or sale of property is permitted, provided it does not exceed five (5) square feet in size, and except that political signs not exceeding five (5) square feet in size, shall be allowed within seven (7) days prior to an election and for one (1) day after an election.

VII

Section III, Signs, Billboards, and Miscellaneous Provisions, Paragraphs (17) and (18) as originally numbered in the Declaration, shall be re-numbered as Paragraphs (18) and (19) respectively, however, with no change or modification in the language or terms thereof.

VIII

Section IV, Duration and Enforcement, Paragraph (19) as originally numbered in the Declaration, shall be re-numbered as Paragraph (20) and is hereby changed and modified to read as follows:

(20) These restrictions and covenants are to run with the land and shall be binding on all parties and all persons claiming under them until January 1, 1988, at which time said covenants shall be automatically extended for successive periods of ten (10) years unless the then owners of the majority of the lots in the said subdivision shall, before the expiration of said original term, or any extension thereof, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds, change or modify the same in whole or in part, provided however, that these restrictions and covenants may be amended, changed, altered, or modified at any time by the then owners of at least sixty six and two-thirds percent ($66 \frac{2}{3}\%$) of the lots in the said subdivision, by an instrument executed, acknowledged and recorded in the office of the Recorder of Deeds.

IX

Section IV, Duration and Enforcement, Paragraphs (20) and (21) as originally numbered in the Declaration, shall be re-numbered as Paragraphs (21) and (22) respectively, however, with no change or modification in the language or terms thereof.

X

Section IV, Duration and Enforcement, Paragraph (22) as originally numbered in the Declaration is hereby deleted in its entirety.

XI

In all other respects, the covenants and restrictions contained within the Declaration as same exists as of this date, remain unchanged and unmodified.

Lena Polito
LENA POLITO

Signature and Printed Name

249

Tomasha Village Lot(s) Number Owned

Date *11-9-97*

Sharon D. Sefton
Sharon D Sefton

Signature and Printed Name

274

Tomasha Village Lot(s) Number Owned

Nov 9, 1997

Date

Linda L Schulte
LINDA L SCHULTE

Signature and Printed Name

235

Tomasha Village Lot(s) Number Owned

11-09-97

Date

Sharon F. Franciske

Sharon F. Franciske

Signature and Printed Name

228

Tomasha Village Lot(s) Number Owned

11-9-97

Date

Vicky Dowland
VICKI DOWLAND

Signature and Printed Name

11/9/97 # 236

Tomasha Village Lot(s) Number Owned

Date

Jerry Boone **JERRY BOONE**

Signature and Printed Name

246

Tomasha Village Lot(s) Number Owned

11-9-97

Date

13117P 244

N/A

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

N/A

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

James R Schurz
James R Schurz

Signature and Printed Name

235

Tomasha Village Lot(s) Number Owned

11-9-97

Date

Larry O Franciske

Larry O Franciske

Signature and Printed Name

228

Tomasha Village Lot(s) Number Owned

11-9-97

Date

Steven F. Dowland
STEVEN F. DOWLAND

Signature and Printed Name

236

Tomasha Village Lot(s) Number Owned

12-21-97

Date

Alice Boone **Alice Boone**

Signature and Printed Name

246

Tomasha Village Lot(s) Number Owned

11-9-97

Date

I3117P 245

[Signature] A. HESHAN SHINDIN

Signature and Printed Name
222

Tomasha Village Lot(s) Number Owned
11-05-97

Date

[Signature]

Signature and Printed Name
231

Tomasha Village Lot(s) Number Owned
11/5/97

Date

RICHARD W. JOHANNES

[Signature]

Signature and Printed Name
232

Tomasha Village Lot(s) Number Owned
11-5-97

Date

[Signature]

Signature and Printed Name
Lot 271

Tomasha Village Lot(s) Number Owned
11-5-97

Date

[Signature]

Signature and Printed Name

Lot 206 - 5 feet of Lot 207

Tomasha Village Lot(s) Number Owned
11-5-97

Date

LOWELL D. BREW

Signature and Printed Name
229

Tomasha Village Lot(s) Number Owned
November 5, 1997

Date

[Signature] Donna H. Lovett-Salmon

Signature and Printed Name
222

Tomasha Village Lot(s) Number Owned
11-5-97

Date

FREDERICK J. RAPP

[Signature]

Signature and Printed Name
231

Tomasha Village Lot(s) Number Owned
11/5/97

Date

ROBERT I. WHALEN

[Signature]

Signature and Printed Name
Lot 232

Tomasha Village Lot(s) Number Owned
11-5-97

Date

SUE R. SHELTON

[Signature]

Signature and Printed Name
Lot 271

Tomasha Village Lot(s) Number Owned
11-5-97

Date

N/A

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

LUISA A. BREW

Signature and Printed Name
229

Tomasha Village Lot(s) Number Owned
November 9, 1997

Date

I3117P 246

Donato E. Elliott

Signature and Printed Name

Donato E. Elliott

Tomasha Village Lot(s) Number Owned

252

Date 11-25-97

Sandra M. Lowe

Signature and Printed Name

203

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Thomas L. Lowe

Signature and Printed Name

Lot 245

Tomasha Village Lot(s) Number Owned

11-25-97

Date

TERRI J. VICKS

Signature and Printed Name

230

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Bob R. Howard

Signature and Printed Name

221

Tomasha Village Lot(s) Number Owned

11-25-97

Date

PAULINE M. MYERS

Signature and Printed Name

248

Tomasha Village Lot(s) Number Owned

12-10-97

Date

Christie Elliott

Signature and Printed Name

Christie Elliott

Tomasha Village Lot(s) Number Owned

252

Date 11-25-97

JAMES W. LOWE

Signature and Printed Name

203

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Nancy J. Lowe

Signature and Printed Name

Lot 245

Tomasha Village Lot(s) Number Owned

11-25-97

Date

KEN S. VICKS

Signature and Printed Name

230

Tomasha Village Lot(s) Number Owned

11-25-97

Date

Janet A. Howard / Jane A. Howard

Signature and Printed Name

221

Tomasha Village Lot(s) Number Owned

11-25-97

Date

N

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

JAYLE CROUCH
Jayle Crouch
Signature and Printed Name
214
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Marylee Scholer
Marylee Scholer
Signature and Printed Name
250
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Mae Linn
MAE LINN
Signature and Printed Name
225
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Rena Jackson
Rena Jackson
Signature and Printed Name
198
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Thomas W. Johnson
Thomas W. Johnson
Signature and Printed Name
205
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Albert P. Hermans
ALBERT P. HERMANS
Signature and Printed Name
269
Tomasha Village Lot(s) Number Owned
11/25/97
Date

GERALDINE R CROUCH
Geraldine R. Crouch
Signature and Printed Name
214
Tomasha Village Lot(s) Number Owned
11-25-97
Date
N/A
Signature and Printed Name
Tomasha Village Lot(s) Number Owned
Date
Clarence A. Linn
CLARENCE A. LINN
Signature and Printed Name
225
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Walter R. Jackson
Walter Jackson
Signature and Printed Name
198
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Genevieve Johnson
Genevieve J. Johnson
Signature and Printed Name
205
Tomasha Village Lot(s) Number Owned
11-25-97
Date
Sandra Thoma Hermans
Sandra Thoma-Hermans
Signature and Printed Name
269
Tomasha Village Lot(s) Number Owned
11/25/97
Date

MARY C. SHADICH

Mary C. Shadich

Signature and Printed Name

251

Tomasha Village Lot(s) Number Owned

11-23-97

Date

Donna Rye Donna Rye

Signature and Printed Name

244

Tomasha Village Lot(s) Number Owned

11-23-97

Date

Sue Russell Sue Russell

Signature and Printed Name

216

Tomasha Village Lot(s) Number Owned

11-23-97

Date

Donna Towsley Donna Towsley

Signature and Printed Name

234

Tomasha Village Lot(s) Number Owned

11/23/97

Date

~~Signature and Printed Name~~

Tomasha Village Lot(s) Number Owned

N.A.

Date

Adam Young

Signature and Printed Name

273

Tomasha Village Lot(s) Number Owned

11-23-97

Date

William L. Shadich 13117P 248

William L. Shadich

Signature and Printed Name

251

Tomasha Village Lot(s) Number Owned

11-23-97

Date

W. Kirk Beye W. KIRK BEYE

Signature and Printed Name

244

Tomasha Village Lot(s) Number Owned

11-23-97

Date

EDWIN A. RUSSELL Edwin A. Russell

Signature and Printed Name

216

Tomasha Village Lot(s) Number Owned

11/23/97

Date

Pershing Towsley Pershing Towsley

Signature and Printed Name

234

Tomasha Village Lot(s) Number Owned

11/23/97

Date

James P. Howard
for Walter D. Howard
James P. Howard D.P.O.A.

Signature and Printed Name

Lot # 208

Tomasha Village Lot(s) Number Owned

11/23/97

Date

Denise Young Denise Young

Signature and Printed Name

273

Tomasha Village Lot(s) Number Owned

11/23/97

Date

13117P 249

Michelle Warren
Signature and Printed Name
256

Tomasha Village Lot(s) Number Owned
12-10-97

Date
H. KENT SIMCOCK
Signature and Printed Name
211

Tomasha Village Lot(s) Number Owned
12-10-97

Date
JOSEPH S. GALL
Signature and Printed Name
240 & 241

Tomasha Village Lot(s) Number Owned
12/10/97

Date
JOHN KISTLER
Signature and Printed Name
209

Tomasha Village Lot(s) Number Owned
12-14-97

Date
CYNTHIA HOWELL
Signature and Printed Name
220

Tomasha Village Lot(s) Number Owned
12-14-97

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

Barbara Perrino
Signature and Printed Name
256

Tomasha Village Lot(s) Number Owned
12-10-97

Date
BOB ANN SIMCOCK
Signature and Printed Name
211

Tomasha Village Lot(s) Number Owned
12/10/97

Date

ANN V. GALL
Signature and Printed Name
240 & 241

Tomasha Village Lot(s) Number Owned
12/10/97

Date
ANN KISTLER
Signature and Printed Name
209

Tomasha Village Lot(s) Number Owned
12-14-97

Date
Virginia Ann Howell
Signature and Printed Name
220

Tomasha Village Lot(s) Number Owned
12-14-97

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

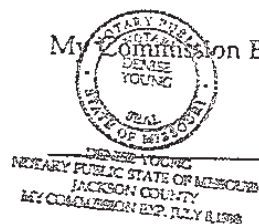
STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 10th day of DECEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared H. KENT SIMCOSEY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

DENISE YOUNG
 Notary Public

My Commission Expires:



STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 10th day of DECEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared JOSEPH & ANN GALL, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

DENISE YOUNG
 Notary Public

My Commission Expires:



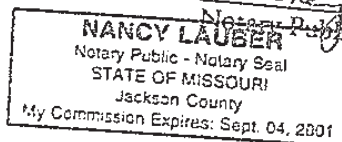
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

12117P 251

On this 14th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared John & Ann Keller, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 14th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Evelyn & Kim, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s). NA

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

Notary Public

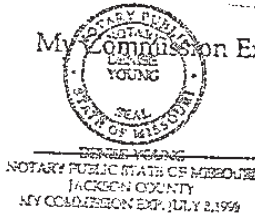
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Rebecca E. Walter Johnson, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
Notary Public (198)

My Commission Expires:



STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Thomas W. Johnson & Geneva Johnson, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
Notary Public (205)

My Commission Expires:



STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared ALBERT & SANDRA HERMANS, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public

269



NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared DONALD E. ELLIOTT, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public

252

My Commission Expires:



NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPI. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Eva Mae & Clarence Linn, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (225)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 9, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Christie E. Elliott, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (252)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 9, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared SANITA & JAMES LOWE to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.


 Notary Public



~~DEANE JONES~~
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 8, 1969

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared THOMAS L. & NANCY LAUBER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

DENISE Young
Notary Public 945



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Terri & Ken Jinks, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (230)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES JULY 8, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 10th day of Dec., 1997, before me, the undersigned, a Notary Public, personally appeared Phillip J. Farrino, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public (256)

My Commission Expires:



DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES JULY 8, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 25th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Don & Susan Howard, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 2, 1998

Denise Young
 Notary Public

(221)

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 10th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared PAULINE MYERS, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 2, 1998

Denise Young
 Notary Public

(246)

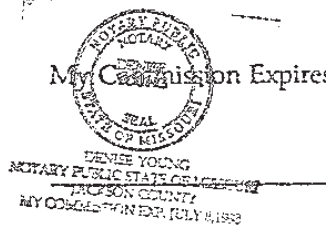
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25 day of Nov, 1997, before me, the undersigned, a Notary Public, personally appeared Jack & Geraldine Couch, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public

My Commission Expires:

[illegible]

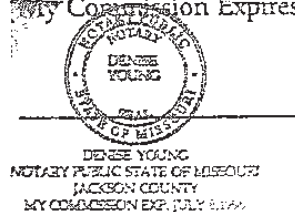
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 25 day of Nov, 1997, before me, the undersigned, a Notary Public, personally appeared Marlyne Schaefer, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public

City Commission Expires:

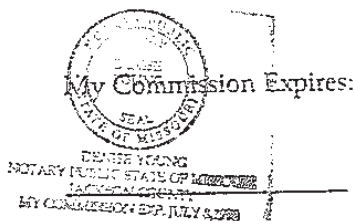


STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of Nov, 1997, before me, the undersigned, a Notary Public, personally appeared MARY & WILLIAM SHULICK, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Kimberly Young
Notary Public

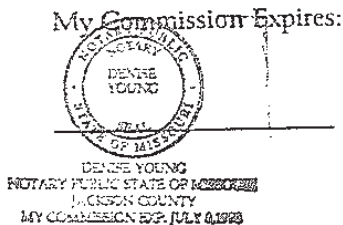


STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of November, 1997, before me, the undersigned, a Notary Public, personally appeared DAVID W. Kirk Rive, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public



STATE OF MISSOURI)
COUNTY OF JACKSON) ss

On this 23RD day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Suzanne Edwina Russell, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public



~~DEED RECORDING~~
 DEPT. OF PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 REC. COMMISSIONER EXP. JULY 2, 1993

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared DORIS C. PERSHING TINSLEY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23RD day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared JAMES R. HOLLARD, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
 Notary Public



My Commission Expires:
 DENISE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES JULY 3, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23RD day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared Adam & Denise Young, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Wilma J. Henks
 Notary Public

My Commission Expires:

WILMA J. HENKS
 Notary Public - Notary Seal
 STATE OF MISSOURI
 Jackson County
 My Commission Expires March 7, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

13117P 262

On this 5TH day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared WILBUR CAPTWELL, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 5TH day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared GLENN & KATHRYN PETERS, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 2, 1998

Denise Young
Notary Public (200)

Denise Young
Notary Public (215)

I3117P 263

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 6th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Janice A. Sartwell, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Linda Gail Allen
Notary Public

My Commission Expires:

01/19/99

LINDA GAIL ALLEN
Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County
My Commission Expires Jan. 19, 1999

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 7th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Linda Cassiker, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Julie A. England
Notary Public

My Commission Expires: 1-3-99

JULIE A. ENGLAND
Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County
My Commission Expires Jan. 03, 1999

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

13117P 264

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared LEON POITTO, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

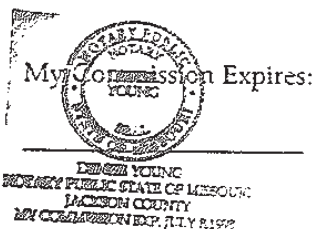


Denise Young
Notary Public

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXPI. JULY 1, 1998
STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Sheron D. SoPlay, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



Denise Young
Notary Public

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Judith & James P. Schultz, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires: 

Denise Young
Notary Public

JENNIE TOUNG
MISSOURI PUBLIC STATE OF MISSOURI
JACKSON COUNTY
NEW ORLEANS, LA. MAY 1944

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Sharon Eckardt Franciskuto, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires: 

HERNIE YOUNG
REPRESENTATIVE, STATE OF TENNESSEE
JACKSON COUNTY
MY COMMISSION EXPIRES JULY 1, 2022

Denise Young
Notary Public

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 9 day of November, 1992, before me, the undersigned, a Notary Public, personally appeared Vicky Dowland, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DOUGLAS YOUNG
NOTARY PUBLIC STATE OF MISSISSIPPI
JACKSON COUNTY
MY COMMISSION EX. JULY 2, 1922

Notary Public

STATE OF MISSOURI)
COUNTY OF JACKSON) ss

On this 9 day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Terry Boone, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public

My Commission Expires: _____



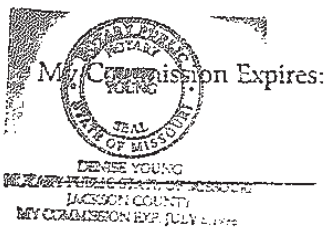
DENISE YOUNG
 SECRETARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXPIRES 11/11/2011

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 9 day of November, 1991, before me, the undersigned, a Notary Public, personally appeared ALICE BLAKE, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public



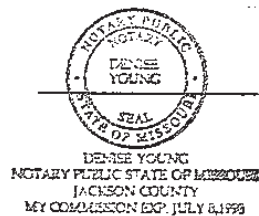
STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 23rd day of Nov., 1997, before me, the undersigned, a Notary Public, personally appeared WILLIE HOWLER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Dennis Young
 Notary Public

My Commission Expires:



STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared LOWELL & LAURA BRENTON, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DEANNE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 8, 1998

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared DONALD & MARCIA RUSSELL, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



DEANNE YOUNG
 NOTARY PUBLIC STATE OF MISSOURI
 JACKSON COUNTY
 MY COMMISSION EXP. JULY 8, 1998

Denise Young
 Notary Public

(229)

Denise Young
 Notary Public

(270)



STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared HASSAN & CONNA SAHIDIN, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



Denise Young
 Notary Public, State of Missouri
 Jackson County
 My Commission Exp. July 8, 1998

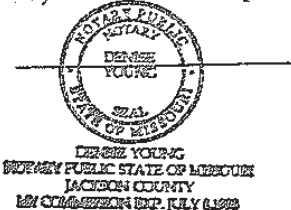
Denise Young
 Notary Public (232)

STATE OF MISSOURI)
) ss
 COUNTY OF JACKSON)

On this 5th day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared RICHARD JOHANNES & ROBERT WHALEN, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



Denise Young
 Notary Public, State of Missouri
 Jackson County
 My Commission Exp. July 8, 1998

Denise Young
 Notary Public (232)

13117P 271

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 4th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Joe + Beverly Kuzniakowski, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires: 1-3-99

Julie A England
Notary Public

Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County

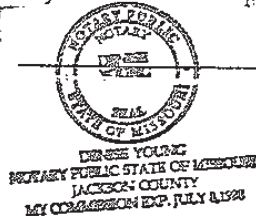
My Commission Expires Jan. 03, 1999

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 5th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared FRED & SHARON RAMP, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



Denise Young
Notary Public

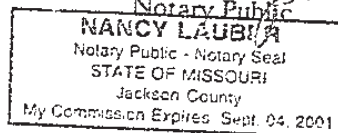
I3117P 272

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 14th day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Justin & Stephanie Howell, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

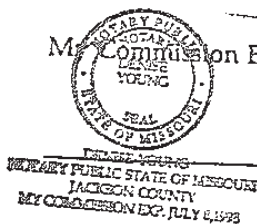


STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 21st day of December, 1997, before me, the undersigned, a Notary Public, personally appeared Steven Dowd, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



Danise Young
Notary Public (236)

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

I3117P 273

On this 23rd day of DECEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared CHERYL GRINER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public



NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXPI. JULY 8, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 23rd day of DECEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared RUTH ANN SIMCASKY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Denise Young
Notary Public



NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXPI. JULY 8, 1998

WILBUR K SARTWELL

Wilbur K Sartwell
Signature and Printed Name

200
Tomasha Village Lot(s) Number Owned

Date

Chenn D Peters
Signature and Printed Name

215
Tomasha Village Lot(s) Number Owned

Date

Donald M. Russell
Signature and Printed Name

270
Tomasha Village Lot(s) Number Owned

Date

Janice Sartwell Janice Sartwell
Signature and Printed Name

200
Tomasha Village Lot(s) Number Owned

Date 11/6/97

Linda Carriger LINDA CARRIGER
Signature and Printed Name

223
Tomasha Village Lot(s) Number Owned

Date

Willie Holliger (NANN)
Signature and Printed Name

210
Tomasha Village Lot(s) Number Owned

Date

I3117P 274

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

Kathryn Peters Kathryn Peters
Signature and Printed Name

215
Tomasha Village Lot(s) Number Owned

Date

Marcia S. Russell
Signature and Printed Name

270
Tomasha Village Lot(s) Number Owned

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

N/A
Signature and Printed Name

Tomasha Village Lot(s) Number Owned

Date

IN WITNESS WHEREOF, the undersigned current owners of a majority of the lots in the said subdivision do hereby set their hands on the dates indicated opposite their signatures, intending to and hereby declaring the amending, changing, and modifying of the Declaration referenced above.

Linda G Kimbley
Signature and Printed Name
274
Tomasha Village Lot(s) Number Owned

Date 11-1-97
Aileen Bangert-Riley
Aileen Bangert-Riley
Signature and Printed Name
254

Tomasha Village Lot(s) Number Owned
11-1-97
Date

RODNEY L. HADER, President
Signature and Printed Name
213

Tomasha Village Lot(s) Number Owned
11-1-97
Date

Rodney L. Hader
Rodney L. Hader
Signature and Printed Name
195

Tomasha Village Lot(s) Number Owned
11-1-97
Date

JOE KUZNIAKOWSKI
Joe Kuzniakowski
Signature and Printed Name
272

Tomasha Village Lot(s) Number Owned
11-4-97
Date

Tim Kimbley
Signature and Printed Name
274

Tomasha Village Lot(s) Number Owned
11-1-97
Date

N.A.
Signature and Printed Name

Tomasha Village Lot(s) Number Owned
Date

MARION F. HANLEY
Signature and Printed Name
213

Tomasha Village Lot(s) Number Owned
11-1-97
Date

N/A
Signature and Printed Name
195

Tomasha Village Lot(s) Number Owned
Date

Beverly Kuzniakowski
Beverly Kuzniakowski
Signature and Printed Name
272

Tomasha Village Lot(s) Number Owned
11-4-97
Date

98- 1 18644

3.00
3.00
4.00
20.00
30.00

I3160P2031

**ADDENDUM TO
AMENDMENT**

DHicks

STATE OF MISSOURI
COUNTY OF JACKSON SS
I CERTIFY INSTRUMENT RECEIVED

1998 MAR 19 P 4: 23.0

I3160P2031

RECORDED BOOK PAGE
DIRECTOR OF RECORDS

**TO THE
DECLARATION OF RESTRICTIONS
OF TOMASHA VILLAGE RESURVEY**

LOTS 195 THRU 256

LOTS 269 THRU 276

(A REPLAT OF LOTS 195 THRU 254, AND LOTS 269 THRU 276)

This is an Addendum (herein "Addendum") to the Amendment to the Declaration of Restrictions of Tomasha Village (herein "Amendment") affecting that certain tract of real estate described as:

All of Lots 195 to 256, inclusive, and 269 to 276, inclusive, TOMASHA VILLAGE RESURVEY, a subdivision of land in the City of Independence, Jackson County, Missouri.

The Amendment was executed by a majority of the then owners of the aforesaid parcel of real estate and was thereafter recorded on December 29, 1997, as Document Number 97-I 81331 in Book I-3117 beginning at Page 240 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence, Missouri. The Amendment amended the terms of the Declaration of Restrictions of Tomasha Village (herein "Declaration") affecting the real estate described above, said Declaration being recorded November 3, 1967 as Document Number I-01778 in Book I-6 beginning at Page 1035 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence, Missouri.

This Addendum is prepared, executed, and filed to correct the inadvertent omission from the recorded Amendment, of certain notary pages wherein signatures of owners of real estate affected by the Amendment and who executed the Amendment, were notarized. Those signatures were notarized at the time of execution as noted on the Amendment, but the notary pages were inadvertently omitted from the Amendment which was recorded as described above.

The undersigned individually, as an agent of the Tomasha Village Homes Association, and for and on behalf of the owners of the real estate described above, had the responsibility of obtaining and compiling all of the signatures on the Amendment, as well as ensuring that all of those signatures were notarized (the undersigned did not have to notarize the signatures himself). The undersigned did obtain all of the necessary signatures, all duly notarized, for the completion and recording of the Amendment.

I3160P2032

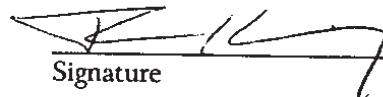
However, in the process of compiling the duly executed and notarized Amendment for recording with the Office of the Recorder of Deeds for Jackson County, Missouri at Independence, Missouri, the undersigned inadvertently misplaced certain of the notary pages, wherein the signatures of certain owners of real estate who had executed the Amendment, were notarized. Therefore, when the executed Amendment was recorded as set forth above, certain of the misplaced notary pages were omitted therefrom. The undersigned has located the misplaced notary pages and now desires and intends to record same as an Addendum to the Amendment. Attached hereto are the original, misplaced notary pages which pertain to the following described real estate:

<u>Name of Owners</u>	<u>Lot Number</u>	<u>Date of Execution</u>	<u>Name of Notary</u>
Rodney Hader	195	November 1, 1997	Denise Young
Bonnie & Marnon Hamby	213	November 1, 1997	Denise Young
Tim & Linda Kinsey	274	November 1, 1997	Denise Young
Alice M. Bangert-Riley	254	November 1, 1997	Denise Young

All of the signatures which were notarized and which are described in the attached notary pages, were duly executed on the dates noted therein. Those original signature pages were attached to and recorded with and as a part of the Amendment described above. No new signatures are included herewith.

In all other respects, Amendment and the Declaration as described above and as same exist as of this date, remain unchanged and unmodified.

IN WITNESS WHEREOF, the undersigned, individually, as an agent of the Tomasha Village Homes Association, and for and on behalf of the owners of the real estate described above does hereby set his hand on the date set forth hereinafter his signature.


Signature

Tim Kinsey
Print Name

3-7-98
Date

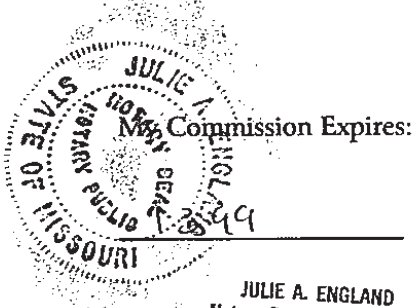
I3160P2033

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 7th day of March, 1998, before me, the undersigned, a Notary Public, personally appeared Tim Kimsey, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he has read the above and foregoing document, that he executed the same as his free act and deed, and that the statements contained in the above and foregoing document are true and correct, and that he executed same in the capacities set forth in the foregoing document.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Kansas City, Missouri, the day and year last above written.

Julie A. England
Notary Public



JULIE A. ENGLAND
Notary Public - Notary Seal
STATE OF MISSOURI
Jackson County
My Commission Expires Jan. 03, 1999

I3160P2034

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 1st day of NOVEMBER, 1997, before me, the undersigned, a Notary Public, personally appeared ROMNEY HAMER, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 6, 1998

Denise Young
Notary Public

195-256
269-276

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this _____ day of _____, 19____, before me, the undersigned, a Notary Public, personally appeared _____, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

Notary Public

My Commission Expires:

13160P2035

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 15th day of November, 1997, before me, the undersigned, a Notary Public, personally appeared BONNIE & MARION HAMBY, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



My Commission Expires:

DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXPI. JULY 8, 1998

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this ____ day of _____, 19__, before me, the undersigned, a Notary Public, personally appeared _____, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:

Denise Young
Notary Public

213

195-256
269-276

Notary Public

I3160P2036

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 1st day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Tim & Linda Kinsey, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 8, 1998

My Commission Expires:

Denise Young
Notary Public

(274)

195-256
269-276

STATE OF MISSOURI)
) ss
COUNTY OF JACKSON)

On this 1st day of November, 1997, before me, the undersigned, a Notary Public, personally appeared Alice M. Bancert-Riley, to me known to be the person(s) described in and who executed the foregoing instrument, and acknowledged that he/she/they executed the same as his/her/their free act and deed, and stated that he/she/they are the owner(s) of the lot(s) described hereinabove under his/her/their signature(s).

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at Independence, Missouri, the day and year last above written.

My Commission Expires:



DENISE YOUNG
NOTARY PUBLIC STATE OF MISSOURI
JACKSON COUNTY
MY COMMISSION EXP. JULY 8, 1998

Denise Young
Notary Public

(254)

195-256
269-276



TOMASHA VILLAGE

A SUMMARY OF DEED RESTRICTIONS AND BY-LAWS

Although this is not an official document, it may be used as an easy reference to determine the guidelines for restrictions in Tomasha. Please retain this summary with your records. If you wish to obtain the actual legal document specific to your lot number, you can do so by visiting the Jackson County Courthouse.

Legend: DR, Deed Restrictions; BL, By-Laws; HD, Home Association Declaration

- A. ITEMS NOT ALLOWED:
- DR 1. Temporary residences of any kind.
 - DR, BL 2. Permanent clothes lines.
 - DR, BL 3. School busses, tractors, trucks, commercial vehicles, boats, trailers, campers and RVs can not be parked at an owner's residence more than 24 hours at any one time.
 - DR 4. Noxious or offensive trade or activity.
 - DR 5. No Solar apparatus may be outside of any residence. Also, no radio or television transmitting or receiving antenna or dish may be outside of any residence unless it is no larger than a cube 2' x 2' x 2'.
 - DR 6. Animals or livestock, except:
 - A. For a duplex - one dog, or one cat, or one other household pet is allowed per family unit.
 - B. For a single family home, no more than two dogs, or two cats, or two other household pets.
 - DR 7. Signs: only one sign is permitted, not exceeding five square feet, indicating "For Sale", "For Rent" or a political sign, not to exceed five sq. ft. is allowed seven days prior to an election and one day after an election.
 - DR 8. Tanks for storing oil or other fluids.
 - DR 9. Outbuildings of any kind.
 - DR 10. Trash, refuse, etc. shall not be dumped on any land.
- B. Only yard fencing is permitted. There are also restrictions regarding where fencing can be placed.
- C. All plans for exterior changes or additions to residences, buildings, walls, roofs and swimming pool construction must be approved by the Architectural Review Committee. Failure to do so may result in the Association filing an injunction to prevent construction.
- D. There are minimum square footage requirements for each dwelling (varying by lot).

Continued on back.

- DR E. All driveways shall be poured concrete, asphalt, brick, cast concrete paving block, or coated concrete, and shall be subject to the approval of the Architectural Review Committee.
- DR F. All roofing shall be wood shingle, slate, natural clay tile, natural concrete tile, or composition weathered gray roof material, and shall be subject to the approval of the Architectural Review Committee.
- HD-BL G. The owners of property in Tomasha, which has been subjected to the Homes Association Declaration (HD) are members of the Association. Owners are entitled to the benefits and services provided by the Association.
- BL H. Guests are permitted to use Association Property only when accompanied by a member.
- I. The Corporation (Association) has the right or responsibility to, in part:
- HD 1. Manage and maintain the common property.
- HD 2. Enforce the restrictions.
- HD-BL 3. Own property.
- HD 4. Levy and collect assessments.
- HD 5. Maintain and provide for the operation of the swimming pool, including establishing a charge for its use.
- HD J. Assessments become liens against the property upon which interest accrues. If unpaid, suit can be brought to sell the property to satisfy the lien.
- HD K. Provisions of the Lien: Association Declarations run with the land. Thus, successor owners, as assigned, continue to be subject to its provisions.
- DR L. The Board of Directors shall conduct, manage and control the business of the Association.
- DR M. Deed restrictions may be changed in December 2008, and every ten years thereafter by a majority vote of the lot owners. They may be changed at any time by a 66 2/3rds vote
- BL N. There shall be an annual meeting of the members of the Association.

1882 PAGE 162

HOMES ASSOCIATION DECLARATION

906818

THIS DECLARATION, made on this 14th day of March, 1967, by HARRY F. GORDANIER and WILLA H. GORDANIER, husband and wife, THOMAS H. SHAW and HELEN L. SHAW, husband and wife, LON M. SUTHERLAND and ESTHER LEE SUTHERLAND, husband and wife, the developers of a subdivision of land in the City of Independence, Jackson County, Missouri, known as TOMASHA VILLAGE, the aforementioned persons hereinafter referred to as "Developers",

WITNESSETH: That

WHEREAS, Developers have subdivided an area of land known as and hereinafter referred to as Tomasha Village, all as shown on the following described plats filed for record in the office of the Recorder of Deeds of Jackson County, Missouri:

<u>Instrument No.</u>	<u>Date Filed</u>	<u>Plat Book and Page</u>
818357	August 19, 1963	Book 27, Page 33
818183	August 15, 1963	Book 27, Page 32
837265	June 5, 1964	Book 27, Page 96
865368	July 27, 1965	Book 28, Page 81
889987	July 11, 1966	Book 29, Page 30

and the Resurvey of Tract A, Tomasha Village

879364	February 9, 1966	Book 28, Page 115
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WHEREAS, Developers are now developing said Tomasha Village for residence purposes and it is Developers' desire to create and maintain a residential neighborhood possessive of features of more than ordinary value.

NOW, THEREFORE, to provide the means necessary to achieve such purposes, Developers do now and hereby subject all of the lands within the subdivision of Tomasha Village, as hereinabove described, and which at the time of the execution of this Declaration Developers individually or collectively own, to the covenants, charges and assessments set forth and contained in this Declaration.

Section 1. DEFINITION OF TERMS USED

The term "district" as used in this Declaration shall mean all of the lands enumerated above in Tomasha Village which are individually or collectively owned by Developers together with all other land located within said subdivision which may, as hereinafter provided, elect to become a part of and subject to the terms of this agreement. If or when other land shall, in the manner hereinafter provided for, be added to that described above, then the term "district" shall thereafter mean all land which shall from time to time be subjected to the terms of this agreement, including any future modifications thereof.

The term "improved property" as used herein shall be deemed to mean a single tract, consisting of one or more contiguous lots or part thereof, under a single ownership and use and on which tract one single-family-residence or one two-family-residence (duplex), is erected or is in the process of erection.

The term "landlord property" as used herein shall be deemed to mean a single tract, consisting of one or more contiguous parcels of land or lots within the boundaries of Tracts A, B, and C, under a single ownership and use and on which tract one or more multiple-family-units (a single structure designed for residence for three or more families), is erected or is in the process of erection.

1885 JES

The term "vacant and unimproved property" shall mean any land within the district which is not "improved property" or "landlord property".

The term "public places" as used herein shall be deemed to mean all streets, intersections, medial strips and similar places, the use of which is dedicated to or set aside for the use of the general public.

The term "owners" as used herein shall mean those persons or corporations who may from time to time own land within the district.

The term "private lanes" as used herein shall be deemed to mean all undedicated streets and ways which are public places as above defined.

The term "common area" as used herein shall mean the park, swimming pool, and tennis court area located on that portion of Tract D north of Covington Road.

Section 2. CORPORATION TO BE FORMED BY
ASSOCIATION.

The owners and residents of landlord property and the owners and residents of improved property within the district shall be the members of an Association, which is hereby created and established, to be known as The Tomasha Homes Association (referred to herein as the "Association"). The Association shall be incorporated under Chapter 355 of the laws of the State of Missouri as a General Not For Profit Corporation. The Articles of Incorporation of said corporation shall contain in substance the following:

a. The name of the corporation shall be: THE TOMASHA HOMES ASSOCIATION.

b. The purposes for which the corporation is organized are hereinafter set forth in Section 4.

c. The name and address of each incorporator and each director constituting the first board of directors shall be:

- (1) Farrell Anderson, 14604 Covington Road, Independence, Mo.
- (2) John H. Boren, 4304 Greenwich Lane, Independence, Mo.
- (3) William E. Elliott, 14412 Berkshire Drive, Independence, Mo.

d. The address of the corporation, initial registered office and its initial registered agent at such address is 4304 Greenwich Lane, Independence, Missouri; John H. Boren.

e. Membership in the corporation shall be divided into two classes:

(i) Voting members shall be limited to the owners of improved property and landlord property within the boundaries of the district as it exists from time to time. In all cases where a vote or written consent or agreement is called for or permitted herein, each member who is an owner of improved property shall have one vote for each improved property as hereinbefore defined. In all cases where a vote or written consent or agreement is called for or permitted herein, each member who is an owner of landlord property shall have one vote for each landlord property as hereinbefore defined. Voting may be in person or by proxy, provided, however, that no proxy may exceed 11 months in duration.

(ii) Non-voting members. An additional class of members shall be created known as non-voting members which shall be limited to those persons who reside within the district but who are not owners of improved property or landlord property within the district. Such

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1882-164

members shall have no voting rights, and shall not have the right to participate in any meeting or proceeding of the Association.

Voting members and non-voting members shall each have an equal right to the enjoyment and use of the facilities located on the common area that may be provided by the Association from time to time with the exception that voting members who do not reside within the district shall not be entitled to the enjoyment and use of the facilities located on the common area.

Prior to the charter of the corporation, herein described, being granted, the unincorporated Association shall manage and control, as Trustee, all public places and improvements upon and to the land within the district except for the common area, which are for the benefit and general use of all the owners, residents and general public within the district. After the granting of the charter of said corporation, the corporation shall then assume management and control, as Trustee, of all public places and improvements upon and to the land except for the common area, which are for the benefit and general use of all the owners, residents and general public within the district. The corporation shall assume management and control over the common area upon acquisition of title to the common area as provided in Section 13 of this instrument.

Section 3. LAND ENTITLED TO BENEFITS.

No land and no persons residing thereon shall be entitled to any of the benefits, improvements or services provided by this Association unless the owner or owners thereof shall have subjected their land to the terms of this Declaration and to the assessments herein provided for.

Section 4. PURPOSES, POWERS AND DUTIES OF THE ASSOCIATION.

The Association shall have the following purposes, powers and duties, which it may exercise and perform whenever in its discretion it may deem them necessary or desirable, to-wit:

a. To enforce, either in its own name or in the name of any owner within the district, any and all restrictions which have been or hereafter may be imposed upon any of the land in the district, either as originally placed thereon or as modified subsequently. This right of enforcement shall not serve to prevent such changes, releases or modifications of restrictions or reservations being made by the parties having the right to do so under the terms of the deeds, declarations, contracts or plats in which such rights of assignment exist. The expenses and costs of any enforcement proceedings shall be paid out of the general fund of the Association as herein provided for. Nothing herein contained shall be deemed or construed to prevent any owner having the contractual right to do so from enforcing in his own name any such restrictions.

b. To manage and control as Trustee for its members all public improvements upon and to the land in the district, or improvements in public places or the common area, provided that such management and control of said improvements shall at all times be subject to that had and exercised by any City, Township, County and State in which the land within the district is located.

c. To provide for the maintenance and improvement of any tennis courts, playgrounds, pedestrian ways, gateways, entrances, drinking fountains, gardens, pools, and ornamental features now existing or which may hereafter be erected or created in said district in any public street or park, or on any land set aside for the general use of the members of the Association entitled to such use; and also to provide for the maintenance and improvement of the common area.

d. To provide such lights as the Association may deem advisable on streets, parks, parkings, pedestrian ways, gateways, entrances or other features, and in

the public places and in the common area.

e. To exercise control over such easements as it may acquire from time to time.

f. To acquire and own the title to such real estate and personal property as may be reasonably necessary in order to carry out the purposes of the Association; to pay taxes on such real estate and personal property as may be owned by it; and to pay such taxes as may be assessed against the land in the common area and public places within the district.

g. To levy and collect the assessments which are provided for in this Declaration and suspend membership rights, including right to use recreational facilities of common area, for non-payment of assessments, fees or for infraction of published rules.

h. To provide for the plowing or removal of snow from streets, sidewalks and the private lanes.

i. To care for, protect and replant trees, shrubbery and grass on all private lanes and in other public places.

j. To mow, care for, and maintain parking places in front of vacant and other property and cut and remove weeds and grass from such parking areas, vacant property or other places, to pick up and remove therefrom loose material, trash and rubbish of all kinds, and to do any other things necessary or desirable in the judgment of the officers of said Association to keep such vacant and unimproved property neat in appearance and in good order.

k. To provide in suitable locations, receptacles for the collection of rubbish, and for the disposal of such rubbish as it is collected, and for the collection and disposal of garbage.

l. To exercise such control over private lanes and streets as may be within its power and as it may deem necessary or desirable; subject at all times to such control of county or other proper officials as may have jurisdiction over streets.

m. To erect and maintain signs for marking of streets.

n. To provide means for emergency fire protection and to furnish the water and necessary equipment for same.

o. To reimburse the State, County or Township for expenses of furnishing emergency special police service for the district or to employ duly qualified peace officers for such purposes.

p. To improve and maintain the common area; to improve and maintain the swimming pool within the common area; to hire qualified personnel to manage and operate the pool; to make rules of conduct and regulations concerning the use of the common area, particularly the pool, deck and patio facilities within the

common area; and to make such reasonable charges for the use of the swimming pool facilities as are necessary to so maintain, improve, operate and manage and to accumulate reserves for depreciation and major repairs and replacements to the swimming pool facilities.

q. To have and exercise such other powers and rights conferred by the laws of the State of Missouri upon corporations organized under Chapter 355.

Section 5. METHOD OF PROVIDING GENERAL
 FUNDS.

a. For the purpose of providing a general fund to enable the Association to exercise the powers, maintain the improvements and render the services herein provided for, all land within the boundaries of the district as now or hereafter constituted shall be subject to an annual assessment which may be levied by the Association from year to year and shall be paid to the Association annually in advance by the respective owners of the assessable land subject thereto. The Association may from year to year fix and determine the total amount required in its general fund and may levy and collect an annual assessment upon improved property not exceeding \$20.00 for each improved property within the district as now or hereafter established. Landlord property shall be assessed at the rate of \$2.00 per apartment unit but not less than \$10.00 for each separate multiple-family-unit on the landlord property.

b. The maximum annual assessment upon improved property as aforesaid may be increased up to and by an amount not exceeding one hundred per cent (100%) or twice the \$20.00 maximum annual assessment which the Association may levy and collect from year to year, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, a two-thirds majority of the members present at such meeting authorize such an increase by an affirmative vote therefor; and provided, further, that the maximum annual assessment upon improved property may be increased up to and by an amount not exceeding two hundred per cent (200%) or thrice the said \$20.00 maximum annual assessment, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, three-fourths (3/4) majority of the members present at such meeting authorize such an increase by an affirmative vote therefor.

c. Whenever the Board of Directors of the Association may deem it advisable to submit to the members a proposal for increasing the amount of annual assessment for a particular year over that of the immediately preceding year, it shall notify, in the manner hereinafter provided, the voting members of the Association of the time and place at which the meeting is to be held and the fact that an increase in the amount of the annual assessment is to be voted upon at such meeting. No increase in the amount of the annual assessment may be made for more than one (1) year at a time.

d. The first assessment shall be for the fiscal year beginning May 1, 1967, and it shall be fixed and levied prior to May 1, 1967, and shall be payable on that date, and thereafter it shall be due and payable on May 1st of each year. The Board of Directors shall fix and levy the annual assessment subject to the

limitations above. It will be the duty of the Association to notify all owners on or before that date, giving the amount of the assessment on each tract of land owned by them, and the date when such assessment is due. Failure of the Association to levy the assessment prior to May 1st of any year, for the next succeeding fiscal year beginning on May 1st, shall not invalidate any such assessment made for that particular year; nor shall failure to levy an assessment for any one year affect the right of the Association to do so for any subsequent year. When the assessment is made subsequent to May 1st of any year, then it shall become due and payable not later than thirty days from the date of levying the assessment. Prior to the first assessment herein above provided for, if the Board of Directors shall deem it necessary for the purpose of carrying out the terms of this Declaration, it shall have the right to make a partial assessment within the limits herein provided for and on a pro rata basis, for the period of time ending April 30, 1967. Thereafter all assessments shall be made annually as herein provided.

e. A written or printed notice, deposited in the United States Post Office, with postage thereon prepaid, and addressed to the respective owners at the last address listed with the Association, shall be deemed to be sufficient and proper notice for these purposes, or for any other purpose of this Declaration where notices are required. Notices of meetings of the membership of the Association shall be mailed not less than ten (10) days in advance of said meetings.

Section 6.

LIEN ON REAL ESTATE.

a. The assessment shall become a lien on the real estate against which it is levied as soon as it is due and payable as above set forth, provided, however, that such lien shall be subject, inferior and subordinate to the lien of any valid first deed of trust now existing or which may hereafter be placed on said real estate. In the event of the failure of any owner to pay the assessment on or before the first day of June following the levy of such assessment, then such assessment shall bear interest at the rate of eight per cent (8%) per annum from the first day of May, but if the assessment is paid before June 1st, or within thirty (30) days from the date of the assessment if the assessment is made subsequent to May 1st for the fiscal year beginning May 1st, then no interest shall be charged.

b. On or after June 1st of each year, beginning June 1, 1967, or within thirty (30) days from the date of levying the assessment for the fiscal year during which and for which the assessment is levied, the assessment shall become delinquent and payment of both principal and interest may be enforced as a lien on said real estate in proceedings in any court in Jackson County, Missouri, having jurisdiction of suits for the enforcement of such liens. It shall be the duty of the Association to bring suits to enforce such liens before the expiration thereof. The Association may at its discretion file certificates of nonpayment of assessments in the office of the Recorder of Deeds whenever any such assessments are delinquent. For each certificate so filed, the Association shall be entitled to collect from the owner or owners of the property described therein a fee of \$2.00, which fee is hereby declared to be a lien upon the real estate so described in said certificates, provided that such lien shall be inferior and subordinate to the lien of any valid first deed of trust now existing or which may hereafter be placed on said real estate. Such fee shall be collectible in the same manner as the original assessments provided for herein and in addition to the interest and principal due thereon.

c. Such liens shall continue for a period of five (5) years from the date of delinquency and no longer, unless within such time suit shall have been

1882 pag 168

instituted for the collection of the assessment, in which case the lien shall continue until the termination of the suit and until the sale of the property under execution of the judgment establishing same.

**Section 7. EXPENDITURES LIMITED TO ASSESSMENTS
FOR CURRENT YEAR.**

The Association shall at no time expend more money within any one year than the total amount of the assessment for that particular year, plus any surplus which it may have on hand from previous assessments; nor shall said Association enter into any contract whatsoever binding the assessment of any future year to pay for any such obligation, and no such contract shall be valid or enforceable against the Association except for contracts for utilities; it being the intention that the assessment for each year shall be applied as far as practicable toward payment of the obligations of that year, and that the Association shall have no power to make a contract affecting the assessment of any future or subsequent year except for utilities.

**Section 8. ASSOCIATION TO NOTIFY MEMBERS
OF ADDRESS.**

The Association shall notify all owners of land in the district as it may exist from time to time, insofar as the addresses of such owners are listed with said Association, of the official address of said Association, the place, time and purposes of the regular and special meetings of the Association, and the place where payments shall be made and other business in connection with said Association may be transacted, and in the case of any change of such address the Association shall notify all the owners of the land in the district, insofar as their addresses are listed with the Association, of the new address.

Section 9. TO OBSERVE ALL LAWS - CONFLICTS.

Said Association shall at all times observe all State, County, City and other laws, and if at any time any of the provisions of this Declaration shall be found to be in conflict therewith then such parts of this Declaration as are in conflict with such laws shall become null and void, but no other part of this Declaration not in conflict therewith shall be affected thereby. The Association shall have the right to make such reasonable rules and regulations, and provide such means and employ such agents as will enable it to adequately and properly carry out the provisions of this Declaration, subject, however, to the limitations of its rights to contract as are herein provided for.

Section 10. AMENDMENT.

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended, provided, however, no right to exceed the maximum annual assessment herein provided for may be modified and amended.

Section 11. HOW TERMINATED.

This Declaration may be terminated, and all of the land now or hereafter affected may be released from all of the terms, provisions and obligations herein set forth and contained, by three-fourths (3/4) of the Voting Members of the Association by their executing and acknowledging an appropriate agreement or agreements and filing the same for record in the office of the Recorder of Deeds of Jackson County, Missouri.

Section 12. OTHER LANDS - HOW THEY MAY BE
ADDED - WHEN AGREEMENT EFFEC-
TIVE.

Persons other than Developers, who own land within said subdivision, may from time to time add such land to the district, provided that the land to be added to the district shall at that time be bound by all of the terms of this agreement and any future modifications thereof. Such persons shall execute and acknowledge an appropriate agreement and file same for record in the office of the Recorder of Deeds of Jackson County, Missouri.

Section 13. DEVELOPERS TO DEED COMMON AREA.

After the incorporation of Association as hereinbefore provided, the Developers shall, upon written request of the Board of Directors of the Association pursuant to authority granted at a duly called meeting of said Board, convey the common area to the Association by general warranty deed free and clear of all liens and encumbrances. No monetary consideration shall be paid to the Developers by the Association for such conveyance.

Section 14. COVENANTS RUNNING WITH THE LAND.

All of the provisions of this Declaration shall be deemed to be covenants running with the land, and shall be binding upon the Developers and such other owners, who, as provided herein, elect to make their land a part of and subject to the terms of this agreement, and upon their successors, assigns and grantees.

Section 15. WHEN DECLARATION BECOMES EFFECTIVE.

This Declaration shall not be effective unless by May 1, 1967, not less than One Hundred Thirteen (113) additional lots in said subdivision of Tomasha Village, as hereinabove described, owned by persons other than Developers, have added their land to the district as provided by paragraph 12 above.

IN WITNESS WHEREOF, The said parties have hereunto set their hands and seals the day and year first above written.

DEVELOPERS:

Harry F. Gordanier
Harry F. Gordanier

Thomas H. Shaw
Thomas H. Shaw

Lon M. Sutherland
Lon M. Sutherland

DEVELOPERS:

Willa H. Gordanier
Willa H. Gordanier

Helen L. Shaw
Helen L. Shaw

Esther Lee Sutherland
Esther Lee Sutherland

STATE OF MISSOURI, County of Jackson, ss:

On this 14th day of March, 1967, before me, the undersigned, a Notary Public, personally appeared Harry F. Gordanier and Willa H. Gordanier, Thomas H. Shaw and Helen L. Shaw, and Lon M. Sutherland and Esther Lee Sutherland, to me known to be the persons described in and who executed the foregoing instrument, and acknowledged that they executed the same as their free act and deed.

IN TESTIMONY WHEREOF, I have hereunto set my hand and affixed my official seal at my office in Raytown, Missouri, the day and year last above written.

My Commission expires:

My Commission Expires Sept. 29, 1967

Ruth J. Martin
Notary Public in and for said
County and State.

FILED FOR RECORD AND FULLY RECORDED IN MY OFFICE ON THIS
APR 1 1967 AT 10:00 O'CLOCK
BY BILL W. ARSTY, RECORDER DEPUTY

16988

98-1

523

I3120P1714

AMENDMENT
TO THE
HOMES ASSOCIATION DECLARATION
OF TOMASHA VILLAGE

STATE OF MISSOURI
COUNTY OF JACKSON SS
CERTIFY INSTRUMENT RECEIVED
1998 JAN -5 P 2:05.5
RECORDED
I3120P1714
DIRECTOR OF RECORDS
3.00
30.00
40.00
509.00
519.00
UP

This is an Amendment to that Homes Association Declaration (herein "Declaration") affecting that certain tract of real estate identified therein and subjected thereto, said real estate being described therein as follows:

<u>Instrument No.</u>	<u>Date Filed</u>	<u>Plat Book and Page</u>
818357	August 19, 1963	Book 27, Page 33
818183	August 15, 1963	Book 27, Page 32
837265	June 5, 1964	Book 27, Page 96
865368	July 27, 1965	Book 28, Page 81
889987	July 11, 1966	Book 29, Page 30
and the Resurvey of Tract A, Tomasha Village		
879364	February 9, 1966	Book 28, Page 115

all as specifically described in the Homes Association Declaration executed on March 14, 1967, which Declaration was thereafter recorded on May 4, 1967 as Document Number 906818 in Book 1882 beginning at Page 462 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence.

The Declaration which is hereby amended, also affects any and all other real estate which was subjected to the terms and conditions of the Declaration, including (but not necessarily limited to) the real estate identified in and described in the following:

<u>Document No.</u>	<u>Book and Page</u>
906819	---
906820	---
906821	---
906822	Book 1882, Page 471
906823	Book 1882, Page 470
---	Book 1882, Page 472
906825	Book 1882, Page 473
906826	Book 1882, Page 474
906827	Book 1882, Page 475
906828	Book 1882, Page 476
906829	Book 1882, Page 477
906830	Book 1882, Page 478

13120P1715

906831	Book 1882, Page 479
906832	Book 1882, Page 480
906833	Book 1882, Page 481
---	Book I-70, Page 340
---	Book I-70, Page 341
I72467	---
I311112	Book I-807, Page 275
I311113	Book I-807, Page 277
I599762	Book I-1370, Page 2067

WHEREAS, the Declaration in Section 10 provides with respect to amending the Homes Association Declaration that:

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended, provided, however, no right to exceed the maximum annual assessment herein provided for may be modified and amended.; and

WHEREAS, the undersigned represent two-thirds (2/3) or more of the Voting Members of the Association within the district as then constituted; and

WHEREAS, the undersigned deem it necessary and desirable to amend the Declaration in part as hereinafter set forth, and hereby desire that this Amendment to the Declaration be executed, acknowledged, and recorded in the Office of the Recorder of Deeds of Jackson County, Missouri, and further desire that the Declaration, as amended, changed, and modified hereby, shall continue to be enforceable in the same manner in which it was originally enforceable; and,

WHEREAS, the undersigned desire and knowledge that all terms of the Declaration not hereby changed or modified shall remain binding and enforceable as said document was originally executed.

NOW THEREFORE, by virtue of the amendment authority aforesaid, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district, herein amend the Homes Association Declaration in the following respects, to wit:

I

Section 10, regarding the amendment of the Declaration, is hereby amended and

b-41
I3120P1716

modified to read as follows:

10. Amendment.

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended.

II

In all other respects, the Homes Association Declaration and the language contained therein as same exists as of this date, remains unchanged, unamended, and unmodified.

IN WITNESS WHEREOF, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district, do hereby set their hands on the dates indicated opposite their signatures, intending to and hereby declaring the amending, changing, and modifying of the Homes Association Declaration as referenced above.

Lance A Perkins LANCE A PERKINS
Signature and Printed Name
298
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Terry J Perkins Terry J. Perkins
Signature and Printed Name
298
Tomasha Village Lot(s) Number Owned
11-01-97
Date

Eleanor T Langford ELEANOR LANGFORD
Signature and Printed Name
146
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Roy A Langford ROY A LANGFORD
Signature and Printed Name
146
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Virginia L McMullen VIRGINIA L. McMullen
Signature and Printed Name
335
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Frederick E McMullen FREDERICK E. McMullen
Signature and Printed Name
335
Tomasha Village Lot(s) Number Owned
11-1-97
Date

98¹ 1116
300
366
5182
5183

13122P 730

AMENDMENT
TO THE
HOMES ASSOCIATION DECLARATION
OF TOMASHA VILLAGE

MISSOURI COUNTY OF JACOBSON SS
I CERTIFY INSTRUMENT RECEIVED
1970 JAN -7 A 10:49.5
13122P 730
RECORDED BOOK PAGE
DIRECTOR OF RECORDS

This is an Amendment to that Homes Association Declaration (herein "Declaration") affecting that certain tract of real estate identified therein and subjected thereto, said real estate being described therein as follows:

<u>Instrument No.</u>	<u>Date Filed</u>	<u>Plat Book and Page</u>
818357	August 19, 1963	Book 27, Page 33
818183	August 15, 1963	Book 27, Page 32
837265	June 5, 1964	Book 27, Page 96
865368	July 27, 1965	Book 28, Page 81
889987	July 11, 1966	Book 29, Page 30
and the Resurvey of Tract A, Tomasha Village		
879364	February 9, 1966	Book 28, Page 115

all as specifically described in the Homes Association Declaration executed on March 14, 1967, which Declaration was thereafter recorded on May 4, 1967 as Document Number 906818 in Book 1882 beginning at Page 462 in the Office of the Recorder of Deeds for Jackson County, Missouri at Independence.

The Declaration which is hereby amended, also affects any and all other real estate which was subjected to the terms and conditions of the Declaration, including (but not necessarily limited to) the real estate identified in and described in the following:

<u>Document No.</u>	<u>Book and Page</u>
906819	---
906820	---
906821	---
906822	Book 1882, Page 471
906823	Book 1882, Page 470
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906829	Book 1882, Page 477
906830	Book 1882, Page 478

906831	Book 1882, Page 479
906832	Book 1882, Page 480
906833	Book 1882, Page 481
---	Book I-70, Page 340
---	Book I-70, Page 341
I72467	---
I311112	Book I-807, Page 275
I311113	Book I-807, Page 277
I599762	Book I-1370, Page 2067

WHEREAS, the Declaration in Section 10 provides with respect to amending the Homes Association Declaration that:

By written consent of two-thirds (2/3) of the Voting Members of the Association within the district as then constituted, evidenced by a Declaration duly executed and acknowledged by such persons and recorded in the office of the Recorder of Deeds of Jackson County, Missouri, this instrument may be modified and amended, provided, however, no right to exceed the maximum annual assessment herein provided for may be modified and amended.; and

WHEREAS, the undersigned represent two-thirds (2/3) or more of the Voting Members of the Association within the district as then constituted; and

WHEREAS, the undersigned deem it necessary and desirable to amend the Declaration in part as hereinafter set forth, and hereby desire that this Amendment to the Declaration be executed, acknowledged, and recorded in the Office of the Recorder of Deeds of Jackson County, Missouri, and further desire that the Declaration, as amended, changed, and modified hereby, shall continue to be enforceable in the same manner in which it was originally enforceable; and,

WHEREAS, the undersigned desire and knowledge that all terms of the Declaration not hereby changed or modified shall remain binding and enforceable as said document was originally executed.

NOW THEREFORE, by virtue of the amendment authority aforesaid, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district, herein amend the Homes Association Declaration in the following respects, to wit:

I

Section 5, subparagraphs (a) and (b), regarding the method of providing general funds,

are hereby amended and modified to read as follows:

Section 5. Method of Providing General Funds.

(a) For the purpose of providing a general fund to enable the Association to exercise the powers, maintain the improvements and render the services herein provided for, all land within the boundaries of the district as now or hereafter constituted shall be subject to an annual assessment which may be levied by the Association from year to year and shall be paid to the Association annually in advance by the respective owners of the assessable land subject thereto. The Association may from year to year fix and determine the total amount required in its general fund and may levy and collect an annual assessment upon improved property not exceeding thirty dollars (\$30.00) for each improved property within the district as now or hereafter established. Landlord property shall be assessed at the rate of three dollars (\$3.00) per apartment unit, but not less than fifteen dollars (\$15.00) for each separate multiple family unit on the landlord property.

(b) The maximum annual assessment upon improved property as aforesaid may be increased up to and by an amount not exceeding one hundred percent (100%) or twice the thirty dollars (\$30.00) maximum annual assessment which the Association may levy and collect from year to year, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, a two-thirds (2/3) majority of the members present at such meeting authorize such an increase by an affirmative vote therefor; and provided, further, that the maximum annual assessment upon improved property may be increased up to and by an amount not exceeding two hundred percent (200%) or thrice the said thirty dollars (\$30.00) maximum annual assessment, provided that at a meeting of the members specially called for that purpose, prior to the date on which the assessment is levied for the year for which such increase is proposed, three-fourths (3/4) majority of the members present at such meeting authorize such an increase by an affirmative vote therefor."

II

In all other respects, the Homes Association Declaration and the language contained therein as same exists as of this date, remains unchanged, unamended, and unmodified.

IN WITNESS WHEREOF, the undersigned, being two-thirds (2/3) or more of the Voting Members of the Association within the district do hereby set their hands on the dates indicated opposite their signatures, intending to and hereby declaring the amending, changing, and modifying of the Homes Association Declaration referenced above.

Larry A. Perkins LARRY A. PERKINS
Signature and Printed Name
298
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Terry J. Perkins Terry J. Perkins
Signature and Printed Name
298
Tomasha Village Lot(s) Number Owned
11-01-97
Date

Eleanor T. Langford Eleanor Langford
Signature and Printed Name
146
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Rox A. Langford Rox A. Langford
Signature and Printed Name
146
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Virginia L. McMullen Virginia L. McMullen
Signature and Printed Name
335
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Frederick E. McMullen FREDERICK E. McMullen
Signature and Printed Name
335
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Henry L. Thompson Henry L. Thompson
Signature and Printed Name
83
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Deviana Thompson DEVIANA THOMPSON
Signature and Printed Name
83
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Yvonne A. Hagaman Yvonne A. Hagaman
Signature and Printed Name
167
Tomasha Village Lot(s) Number Owned
11-1-97
Date

Ronald J. Hagaman RONALD J. HAGAMAN
Signature and Printed Name
167
Tomasha Village Lot(s) Number Owned
11-1-97
Date

I 01777

I 6P1032

ADDITION TO HOMES ASSOCIATION DECLARATION

WHEREAS, a Homes Association Declaration dated March 14, 1967, and recorded May 4, 1967, as Document No. 906818 in Book 1882 at Page 462, Office of Recorder of Deeds for Jackson County, Missouri, at Independence, was executed by Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, and Lon M. Sutherland and Esther Lee Sutherland, husband and wife, and

WHEREAS, it is the desire of said persons to subject other real estate to the terms and conditions of said Declaration.

NOW THEREFORE, Harry F. Gordanier and Willa H. Gordanier, husband and wife, Thomas H. Shaw and Helen L. Shaw, husband and wife, and Lon M. Sutherland and Esther Lee Sutherland, husband and wife, the owners of Lots 195 thru 256 Tomasha Village Resurvey and Lots 269 thru 276, a re-plat of Lots 195 thru 254 and Lots 269 thru 276, TOMASHA VILLAGE, a subdivision of land in Jackson County, Missouri, do hereby subject all of said lots to the terms and conditions of that certain Homes Association Declaration dated March 14, 1967, and recorded May 4, 1967, as Document No. 906818 in Book 1882 at page 462, Office of Recorder of Deeds for Jackson County, Missouri, at Independence.

IN WITNESS WHEREOF, the parties hereto have executed this instrument this 25th day of October, 1967.

Harry F. Gordanier
Willa H. Gordanier
Thomas H. Shaw
Helen L. Shaw
Lon M. Sutherland
Esther Lee Sutherland

STATE OF MISSOURI)
) ss.
COUNTY OF JACKSON)

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Harry F. Gordanier and Willa H. Gordanier, his wife, to me personally known, and acknowledged that they executed the

foregoing instrument as their free act and deed. In testimony whereof, I have hereunto subscribed my name and affixed the seal of my office on the day and year above written.

I6P1033

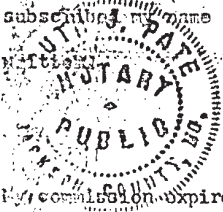


Ruth J. Pato
Notary Public

My commission expires My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)
)SS.
COUNTY OF JACKSON)

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Thomas H. Shaw and Helen L. Shaw, his wife, to me personally known, and acknowledged that they executed the foregoing instrument as their free act and deed. In testimony whereof, I have hereunto subscribed my name and affixed the seal of my office on the day and year above written.

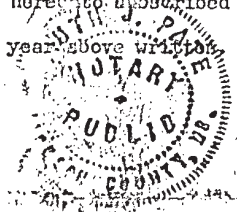


Ruth J. Pato
Notary Public

My commission expires My Commission Expires Sept. 29, 1971

STATE OF MISSOURI)
)SS.
COUNTY OF JACKSON)

On this 25th day of October, 1967, before me, the undersigned, a Notary Public, personally appeared Lon M. Sutherland and Esther Leo Sutherland, his wife, to me personally known, and acknowledged that they executed the foregoing instrument as their free act and deed. In testimony whereof, I have hereunto subscribed my name and affixed the seal of my office on the day and year above written.



Ruth J. Pato
Notary Public

My commission expires My Commission Expires Sept. 29, 1971

LAND TITLE

2 017777

1882
1/62

Home Acre
88
870

STATE OF MISSOURI)
JACKSON COUNTY) SS
RECEIVED FOR RECORD

NOV 3 11 10 26 A

RECORDED
INDEXED

72m

I6P1034

I 6P1032

906818

LAND TITLE

200

STATE OF MISSOURI) SS. IN RECORDER'S OFFICE
COUNTY OF JACKSON)

I, BILL W. AUSTIN, Recorder of Deeds within and for the County aforesaid, do hereby
certify that the foregoing instrument of writing was on the 3 day of November
A. D. 1967 at 10 o'clock PM filed for record in
this office. The instrument is recorded in the
record of this office in book I 6 at page 1132

Attest my hand and seal of said office, at
Independence, Missouri, this day of November 1967.

BILL W. AUSTIN, Recorder J. McManis